

Opinion of the Court

maliciously, and without any reasonable or probable cause, commits a wrongful act; and if the accused is thereby prejudiced, either in his person or property, the injury and loss so sustained constitute the proper foundation of an action to recover compensation”); *Dinsman v. Wilkes*, 12 How. 390, 402 (1852) (no immunity “where a party had maliciously, and without probable cause, procured the plaintiff to be indicted or arrested for an offence of which he was not guilty”).

In the decades after the adoption of the 1871 Civil Rights Act, however, the prosecutorial function was increasingly assumed by public officials, and common-law courts held that public prosecutors, unlike their private predecessors, were absolutely immune from the types of tort claims that an aggrieved or vengeful criminal defendant was most likely to assert, namely, claims for malicious prosecution or defamation. See *Imbler*, 424 U. S., at 441–442 (White, J., concurring in judgment); *Kalina*, *supra*, at 124, n. 11 (noting that cases “decided after 1871 . . . granted a broader immunity to public prosecutors than had been available in malicious prosecution actions against private persons who brought prosecutions at early common law”); see also *Burns*, *supra*, at 505 (SCALIA, J., concurring in judgment in part and dissenting in part) (noting that the “common-law tradition of prosecutorial immunity . . . developed much later than 1871”).

This adaptation of prosecutorial immunity accommodated the special needs of public, as opposed to private, prosecutors. Because the daily function of a public prosecutor is to bring criminal charges, tort claims against public prosecutors “could be expected with some frequency, for a defendant often will transform his resentment at being prosecuted into the ascription of improper and malicious actions to the State’s advocate.” *Imbler*, 424 U. S., at 425. Such “harassment by unfounded litigation would cause a deflection of the prosecutor’s energies from his public duties,” and would result in a severe interference with the administration of an important public office. *Id.*, at 423. Constant vulnerability to vexatious litigation would give rise to the “possibility that

Opinion of the Court

[the prosecutor] would shade his decisions instead of exercising the independence of judgment required by his public trust.” *Ibid.*

Thus, when the issue of prosecutorial immunity under § 1983 reached this Court in *Imbler*, the Court did not simply apply the scope of immunity recognized by common-law courts as of 1871 but instead placed substantial reliance on post-1871 cases extending broad immunity to public prosecutors sued for common-law torts.

While the Court has looked to the common law in determining the scope of the absolute immunity available under § 1983, the Court has not suggested that § 1983 is simply a federalized amalgamation of pre-existing common-law claims, an all-in-one federal claim encompassing the torts of assault, trespass, false arrest, defamation, malicious prosecution, and more. The new federal claim created by § 1983 differs in important ways from those pre-existing torts. It is broader in that it reaches constitutional and statutory violations that do not correspond to any previously known tort. See *Kalina*, 522 U. S., at 123. But it is narrower in that it applies only to tortfeasors who act under color of state law. See *Briscoe*, 460 U. S., at 329. Section 1983 “ha[s] no precise counterpart in state law. . . . [I]t is the purest coincidence when state statutes or the common law provide for equivalent remedies; any analogies to those causes of action are bound to be imperfect.” *Wilson v. Garcia*, 471 U. S. 261, 272 (1985) (internal quotation marks and citation omitted). Thus, both the scope of the new tort and the scope of the absolute immunity available in § 1983 actions differ in some respects from the common law.

III

A

At common law, trial witnesses enjoyed a limited form of absolute immunity for statements made in the course of a judicial proceeding: They had complete immunity against